



JAMAICA CONSTABULARY FORCE

Policy and Standard Operating Procedures on the Handling of Threats

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Jamaica Constabulary Force Policy and Standard Operating Procedures for the Handling of Threats

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1.0 Introduction

Anecdotal evidence indicates that a significant number of serious crimes result from initial threats of violence often made by individuals known to victims. The deleterious nature of threats is of such that it can quickly escalate from written or verbal offer of violence to physical violence often leading to serious injury or even death. It is purported that if intervention measures are effected in a timely and effective manner, this could prevent the violence from escalating and therefore influence crime reduction.

Notably, over the years there have been threats made on the lives of prominent persons in the society. A large number of these threats are made with the use of telephone and in many instances the offenders are known. The status of the victims coupled with the nature of the threats trigger certain police responses that are tailored generally to reassure the victim and minimize the probability of the threats being carried out.

The Jamaica Constabulary Force (JCF) acknowledges that within the context of a worrying crime environment, threats and the potential results from escalation have become a focal point of great concern. Consequently, the JCF directives and guidelines on handling threats have been reviewed and a Policy and Standard Operating Procedure developed to provide a standardized response to reports of threats.

This Policy and Standard Operating Procedures incorporate Force Orders No. 2508, Part I, Sub. No. 1 dated June 29, 1995 which deals with threat on the lives of prominent persons and Force Orders No. 3646, Part I, Sub. No. 3 dated April 20, 2017 which is the revised guidelines for dealing with threats; and must be complied with by all members. Breaches will be dealt with by the JCF disciplinary process

2.0 Purpose

The purpose of this policy and standard operating procedures is to provide a standardized way in which reports of threats are investigated and handled.

3.0 Scope

This policy and standard operating procedures apply to all sworn and unsworn members of the JCF and its auxiliary. It covers the procedures for dealing with reports of threat to life and/or property and the elevated response where the threat is made against prominent persons.

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4.0 Abbreviations & Acronyms

ACP	Assistant Commissioner of Police
CFCD	Communication Forensic and Cybercrime Division
DCP	Deputy Commissioner of Police
DIM	Divisional Intelligence Manager
IO	Investigating Officer
“I”	Index
NIB	National Intelligence Bureau
JCF	Jamaica Constabulary Force
TSD	Technical Services Division

5.0 Definitions

- 5.1 Prominent Persons** - For the purpose of this policy, shall mean any person that falls within the following categories:
- a) Governor General
 - b) Member of Parliament
 - c) Senator
 - d) Mayor
 - e) Judges and Prosecutors
 - f) Permanent Secretary
 - g) Custos
 - h) Head of Executive Agencies
 - i) Members of the Diplomatic Corp
- 5.2 Threat to Person** - is the offer, written or verbal, to do harm to someone else.
- 5.3 Threat to Murder** - To maliciously send or utter directly or indirectly any letter or writing, threatening to kill or murder anyone, (Section 18 Offences Against the Person Act).
- 5.4 Threat Offender**- any person who offers, whether written or verbal, to do harm to someone else

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6.0 Responsibilities

6.1 Commanding Officer

Commanding Officers in charge of Divisions shall be responsible to ensure that adequate systems are in place to facilitate the prompt investigation of threat reports in keeping with this Policy and SOP

6.2 Sub Officers/Station Managers

Sub-Officers in charge station shall be responsible to ensure that:

- 6.2.1 cases of reported threats are dealt with expeditiously and professionally;
- 6.2.2 reports of threats are properly recorded and indexed in the Station Diary;
- 6.2.3 appropriate follow-up actions are taken.

6.3 Members

Members shall:

- 6.3.1 appreciate and respond to all reports of threat promptly and in accordance with the organization's policy and standard operating procedures; and
- 6.3.2 ensure that threat reports are recorded and indexed in the Station Diary and the requisite follow-up actions by the police recorded and referenced accordingly.

7.0 Policy Statements

It is the policy of the JCF that all reports of threat are promptly appreciated and dealt with in a professional manner with a view to locate the offenders and take the necessary actions to diffuse potential escalations.

8.0 Standard Operating Procedures

When a threat report is made to the Police, the following procedures shall be followed:

- 8.1 The member receiving the report shall ensure that a statement is recorded from the complainant which must contain:
 - a) Nature and details of the threat;
 - b) The name, address, age and occupation of the person making the report;
 - c) The name, address, age and occupation of accused (where known); and
 - d) The relationship of the accused to the complainant (if any)

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- 8.2 The member shall record the report in the Station Diary, to include the nature of the threat. This should be indexed “**I**” in red ink under the subject, “Threat” and cross-referenced at the back of the said Station Diary as per **Appendix 1**.
- 8.3 The complainant should be advised to take civil action and should also be assured that the threat offender will be warned as early as possible not to carry out the threat.
- 8.4 A police team shall be dispatched immediately or as early as possible to warn the threat offender not to carry out the threat, which had been reported against him/her.
- 8.5 The police shall record the result of the police action and enquiries in the Station Diary. The entry must be cross referenced with the related diary entries.
- 8.6 The police shall make subsequent follow-up checks with the complainant and satisfy him/herself that the threat no longer exists.
- 8.7 If the threat to do harm is uttered in the presence and hearing of the police, the police can arrest and charge the person who uttered the threat (for breach of Section 3(m), under Section 4 of the Town and Communities Act).
- 8.8 Where a **threat to murder** (as defined in this Policy and SOP) was made, the accused can be arrested and charged by the police

8.9 Threat on the lives of Prominent Persons

In the event the person threatened is a **Prominent Person** (as defined in this Policy and SOP) the following shall apply:-

- 8.9.1 **An assessment of the threat** must be done at the local level by the National Intelligence Bureau or the Divisional Intelligence Manager (DIM) (where applicable) taking into account the following:
- a. Persons threatened
 - b. Specific circumstances surrounding the threat
 - c. Origin or likely origin of the threat
 - d. Probability of the threat being carried out
 - e. Type of security measures necessary.

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- 8.9.2 On completion of the assessment, the investigative officer should submit a report to the Divisional Commanding Officer, who will direct an appropriate response or where necessary refer to the respective Area Officer who will direct appropriate response
- 8.9.3 If the level and seriousness of the threat based on the assessment requires action at the CIB the matter must be referred through the Area Crime Officer to the Assistant Commissioner CIB who will direct appropriate action
- 8.9.4 Based on the assessment of the threat, the police shall advise the victim(s) of measures that may be taken to counter the threat. Security advice given must cover movement of victim(s), and safety of home, vehicles and other properties (where applicable). If necessary, relatives or persons close to victim(s) should also be advised.
- 8.9.5 **Assigning Security** - Based on the nature and gravity of the threat and the person threatened, recommendations may be made to the DCP Crime through the ACP CIB for the temporary assignment of Close Protection Officer to the victim and or static guards.
- 8.9.6 The DCP Crime and Security will determine to whom CPOs and or static guards will be assigned. Other victims may be advised to employ private security
- 8.9.7 In the event that the threat is made by telephone and the offender is known, the JCF's Communication Forensic and Cybercrime Division (CFCD) should be requested to conduct further investigation. Telecommunication companies may also be requested to aid the investigation.
- 8.9.8 Where the threat was made by letter, fingerprint examination should be carried out on both letter and envelope before unnecessary handling takes place. The Technical Services Division (TSD) should be requested to aid this investigation
- 8.9.9 **Review** – An initial review of the investigation must be conducted after two (2) weeks, or sooner where necessary, after the security measures were put in place. Thereafter reviews must be conducted at reasonable intervals or as directed by the DCP Crime.

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8.9.10 The review team shall include the Investigating Officer (IO), Intelligence team (NIB/DIM), CIB team and where applicable Divisional Command team.

8.9.11 The review should address the following:

- a) the extent to which the threat has heightened or diminished;
- b) the necessity for additional security advice; and
- c) the necessity for Close Protection Officers and/or static guards to remain in place, increased or withdrawn.
- d) The extent to which the whole situation has affected the normal life of the victim

8.9.12 The ACP CIB should be kept informed on the status of the investigation in order to brief the DCP Crime and Security where necessary.

9.0 Records and Forms

Station Diary

10.0 Legislative Authority or Guiding Principles

This Policy and SOP shall be read in conjunction with the following:

- 1. Town and Communities Act
- 2. Offences against the Person's Act

Appendix 1 - Station Diary Entry (Specimen)

CONS. #	REF. #	HOUR	SUBJECT	NATURE OF OCCURRENCE	SIGNATURE
55	62	10:00 a.m.	Threat "T"	Mary Jones, age 28 years old, dressmaker of 15 Browns Lane, Kingston 13, reported a threat against Ben Lewis, Mechanic of the same address. Jones alleged that Lewis used the following words to her "A gwine buy a lass fi chop you up later ". She was advised to take civil action and that a Constable would be sent out to warn Lewis, not to carry out his threat.....	A.Lee Cons.# 231
62	55 / 120	10:10 a.m.	Enquiries	Dispatched Constables M. Brown and B. Broadie to # 15 Browns Lane to warn Ben Lewis re threat reported against him by Mary Jones. Cons Brown and Broadie are neatly dressed in plain clothes and armed with S/Revolver # D766054 and 12 rounds .38 Cartridges and S/R D788942 and 12 rounds .38 cartridges respectively.	A.Lee Cons. # 231
120	62	10:50 a.m.	Enquiries	Cons. Brown and Broadie returned from 15 Browns Lane and reported that they warned Ben Lewis not to carry out his threat against Mary Jones. When Lewis was warned he said "A was just a run a little joke Officer ". Brown returned S/Revolver # D766054 and 12 rounds while Broadie handed over S/R D788942 and 12 rounds .38 cartridges.	A.Lee Cons. # 231